AMENDED AND RESTATED COLLABORATIVE ACCESS TEAM AGREEMENT

THIS AMENDED AND RESTATED COLLABORATIVE ACCESS TEAM AGREEMENT (this "Agreement"), made this 1st day of March 2022 (the "Effective Date"), by and between NORTHWESTERN UNIVERSITY, an Illinois not-for-profit institution of higher education with its principal offices in Evanston, Illinois ("NU"); MICHIGAN STATE UNIVERSITY, a Michigan institution of higher education with its principal offices in East Lansing, Michigan ("MSU"); THE UNIVERSITY OF MICHIGAN, a Michigan institution of higher education with its principal offices in Ann Arbor, Michigan("UM"); WAYNE STATE UNIVERSITY, a Michigan institution of higher education with its principal offices in Detroit, Michigan ("WSU");the University of Wisconsin (''UW"); Vanderbilt University ("VU"); and University of Illinois at Urbana-Champaign ("UIUC"; and UIUC, NU, MSU, UM, WSU, UW and VU are sometimes referred to herein, collectively, as the "Parties", and each, individually, as a "Party").

WHEREAS, the United States Department of Energy ("DOE") funds a national synchrotron - radiation light source research facility located at the Advanced Photon Source ("APS"), Argonne National Laboratory in Argonne, Illinois, USA to support basic and applied research using high brilliance x-ray beams from the APS;

WHEREAS, through the leadership of Dr. Martha L. Ludwig, Biophysics Research Division, University of Michigan, the Parties previously entered into that certain Collaborative Access Team Agreement as of March 1, 2002 (as amended from time to time, the "Original CAT Agreement") for purposes of establishing a Life Sciences Collaborative Access Team ("LS-CAT" or the "CAT") for developing, facilitating, instrumenting, and operating a sector at the APS; and

WHEREAS, the Parties now wish to extend and amend certain terms governing their collaboration under the CAT under the terms and subject to the conditions of this Agreement.

NOW, THEREFORE, in consideration of the mutual covenants and obligations set forth below, the Parties agree as follows:

1.0 Formation of LS-CAT

1.1 Subject to the approval of APS, the Parties wish to establish a Life Sciences Collaborative Access Team, known as LS-CAT, to develop, instrument, and operate a single sector at the APS that would initially involve approximately nineteen (19) principal investigators employed by one of the Parties. In addition, participation by other scientific collaborators, principal investigators, independent researchers, students, and post doctoral fellows is anticipated.

2.0 Purposes of LS-CAT

2.1 LS-CAT submitted a Full Proposal to APS, written in conformance with guidelines established by APS, on January 15, 2001 for the purpose of being granted access to one of the available APS single sectors.

2.2 LS-CAT commits to develop, instrument and operate the sector and respect proprietary interests, including intellectual property, in accordance with the terms of this Agreement and the Memorandum of Understanding attached hereto as Attachment A.

2.3 The CAT is formed to facilitate and carry out advanced structural biology research. Among the investigations to be carried out at the APS-allocated sector are the following: structure-function studies of membrane proteins; studies of multi-component systems in cellular signaling and protein transport; structural studies of the complexes that shape and synthesize nucleic acid complexes involved in genome replication, regulation, and expression; and structure and design of enzymes that are novel targets for mechanistic studies and for biotechnology or drug design. This list of programs is subject to modification by the CAT and is neither exclusive nor exhaustive.

3.0 Funding

3.1 The Parties will share responsibility for stimulating research and securing funding to cover all costs, expenses, and charges connected with operations of the CAT's single sector at the APS during the lifetime of this Agreement (collectively, the “CAT Costs”). The Parties will likewise cooperate to recruit new partners to invest in and/or solicit funding for improvements or expanded technical capabilities of the LS-CAT that are directly associated with or attributable to the clarification or modification of the proposal submitted to APS pursuant to paragraph 2.1.

3.2 Shares. Each Party’s share of the responsibility for funding the total CAT Costs covered by this Agreement as set forth in this Section 3.0, and its right to vote on matters as a member of the Board will be represented by “Shares” allocated to such Party from time to time in accordance with the terms of this Section 3.0. The Shares allocated to each Party as of the Effective Date are set forth on Schedule A attached hereto, as the same may be amended and updated from time to time in accordance with the terms of this Agreement. A Party may be

allocated fractional Shares under this Agreement.

3.3 Each Party will be solely responsible for obtaining funding for its Share of the total CAT Costs covered by this Agreement as set forth in this Section 3.0.

3.4 Each Party will contribute a portion of the Annual CAT Costs assessed by the Management Board of the CAT as set forth in the Budget approved pursuant to paragraph 4.5.14. Such contribution by each Party under each Budget shall be equal to (a) an amount equal to (i) the total Annual CAT Costs set forth in such Budget, *divided by* (ii) the total number of Shares allocated to all Parties during the year covered by such Budget, *multiplied by* (b) the number of Shares (including fractional Shares) allocated to such Party during the year covered by such Budget (each, a Party's "Contribution"). Contributions will be due within thirty (30) days of assessment unless otherwise provided for by the Management Board. Failure by any Party to make any Contribution duly assessed when due and owing will be regarded as a material breach of this Agreement by that Party. Upon the approval of the Board, a Party's Contribution may be satisfied in whole or in part through in-kind contributions, such as equipment or by appointing staff to carry out the activities of CAT under Section 10.0.

3.5 If a Party elects during the term of this Agreement to exercise its right, as provided in Section 12.0, to terminate participation under this Agreement, it will not be entitled to recover any costs or Contributions already paid. In addition, and notwithstanding such election, that Party will be obligated to fund its Contribution for the one-year period between notice of termination and the effective date of termination, as provided in paragraph 12.1.

3.5.1 A Party electing to exercise its termination rights may, with the written consent of the other Parties, substitute an outside Party to assume its Shares, Contribution and other rights and financial obligations hereunder, in accordance with the provisions of Section 14.0 of this Agreement. Preference shall be given to entities located in Michigan or companies considered to be based in Michigan. If a Party elects to exercise its termination rights and does not substitute an outside party to assume its Shares, Contribution and other rights and financial obligations hereunder, then upon the effective date of such termination, Schedule A shall be amended to remove such Party and its Shares.

3.6 Additional Parties. An entity may be added as an additional "Party" to this Agreement and admitted to CAT upon the execution of a written agreement in the form attached to this Agreement as Attachment B (the "Joinder Agreement") by the additional party and all of the Parties then party to this Agreement setting forth the Shares to be allocated to such additional entity hereunder, and pursuant to which such additional entity agrees to be bound by all the

terms and conditions of this Agreement as a Party hereto. Upon the addition of an additional Party, Schedule A shall be amended as set forth in the Joinder Agreement to reflect the name and notice address of the additional Party and the Shares allocated to such additional Party.

3.7 At any time during the term of this Agreement, any Party may request to reduce the number of Shares allocated to such Party and the resulting Contribution owed by such Party by delivering twelve (12) months prior written notice of such request to the Board (each, a "Reduction Notice"). Each Reduction Notice shall describe in reasonable detail the amount of the reduction in the number of Shares requested by the Party, the budget period(s) to which such reduction is to apply, the reason for such reduction, and the date on which such Party would like such reduction to take effect; provided, that such effective date shall be at least twelve (12) months following the date on which such Reduction Notice is received by the Board. Such reduction in the Shares allocated to the requesting Party shall take effect on the date specified in such Reduction Notice, so long as such date complies with the terms of this subsection 3.6., and, as of such date, Schedule A will be amended to reflect such reduction in Shares allocated to such requesting Party.

3.8 Third Party Funding. For the avoidance of doubt, each Party may obtain funding for its Contribution or other CAT Costs from third party sources, including, without limitation, from sponsorships or grants; provided, that no Party may bind the other Parties to any contractual obligation, or restrict or condition the operation of or access to the beam or other LS-CAT operations except as permitted by this Agreement or as agreed by all of the Parties in writing.

4.0 Management Board

4.1 Management of the LS-CAT will be by a Management Board ("Board") appointed by the Parties.

4.1.1 The number of members of the Board will equal the number of Parties then party to this Agreement, and each Party shall be entitled to appoint one (1) member to the Board. Each Board member (or alternate in the event an alternate is serving in place of a member) shall have one vote for each Share allocated to the Party that appointed such Board member (including a fractional vote for any fractional share allocated to such Party). Each Party will have sole discretion to replace the Board member it has appointed upon notice to the other Parties. Board members will serve until replaced by the Party that appointed them.

4.1.2 Each Share allocated to a Party shall entitle such Party to one vote on any matter voted

on by the Board as provided in this Agreement. Any fractional Shares allocated to a Party shall entitle that Party to a fractional vote in proportion to such fractional Share.

4.2 In addition to the members of the Board appointed in accordance with paragraph 4.1, there shall be a chairperson of the Board (the "Chair") who will not vote except to break a deadlock among the quorum of voting members. The Board shall elect the Chair.

4.2.1 The Chair will call and conduct meetings of the Board and arrange the agenda for such meetings.

4.3 The Board will select a secretary and a treasurer from among its members on an annual basis and on a schedule specified by the Board.

4.4 Board members will not receive compensation for their services. The members may receive expense reimbursement from the CAT only when authorized by the Board.

4.5 The Board will have the following powers and duties:

4.5.1 Establish and continue to develop the scientific mission of the CAT;

4.5.2 Assess the technical and administrative efforts of the CAT engineering/construction staff;

4.5.3 Monitor and assess the performance of the CAT with respect to cost, schedule, and technical scope;

4.5.4 Provide representation on any of the Collaborative Access Team advisory or coordination committees instituted by the APS managenient;

4.5.5 Assure that the CAT adheres to policies or procedures established by the APS with respect to sector users;

4.5.6 Oversee the reporting activities of the CAT to assure effective communication between the CAT and the Parties, independent investigators and the APS User Support and Administration Office;

4.5.7 Approve access to beam time to Associate CAT Members (as such term is defined in subsection 4.10) as requested from time to time by a Party pursuant to subsection 4.10;

4.5.8 Approve major changes in beam line design or scope;

4.5.9 [Intentionally omitted];

4.5.10 Establish accounts for deposit and disbursement of funds subject to such requirements as may be imposed by external funding sources;

4.5.11 Appoint committees, advisory groups or task forces as may be necessary to assist the Board in fulfilling their responsibilities efficiently and effectively;

4.5.12 Appoint the Scientific Director ("the Director") of the CAT, specify and modify the scope of the Director's responsibilities as necessary from time to time, review the Director's periodic reports and performance, and provide such additional guidance and consultation as the Director may request;

4.5.13 Appoint the Manager ("the Manager") of the CAT to manage the day-to-day operations, specify and modify the scope of the Manager's job description and responsibilities as necessary from time to time, review the Manager's periodic reports and performance, and provide such additional guidance and consultation as the Manager may request;

4.5.14 Review and approve the annual budget (the “Budget”) setting forth (a) the total CAT Costs to be covered by the Parties in each applicable year under this Agreement (the “Annual CAT Costs”), and (b) each Party’s Contribution towards such total budgeted amount as calculated in accordance with subsection 3.4; the Budget will be developed by the Manager in consultation with the Scientific Director and provide such assistance as may be required;

4.5.15 Review and approve any LS-CAT expenditures that exceed the established authority of the Manager;

4.5.16 Establish LS-CAT policies and operating procedures, including guidelines for the addition of institutional partners to LS-CAT;

4.5.17 Provide financial reports to the Parties on a regular basis or at any such time as

requested by one of the Parties that provides details on revenues and expenditures;

4.5.18 Oversee beam line safety and quality assurance, quality control procedures; and

4.5.19 Such other powers and duties as may be assigned to the Board by agreement of the Parties.

4.6 Regular meetings of the Board will be held at such times and places as the Board may determine. Meetings may be held by telephone or video conferencing.

4.7 For purposes of conducting business at any Board meeting, a quorum shall consist of the Board members entitled to vote a majority of the total outstanding Shares allocated to all Parties hereunder. No action at any Board meeting may be taken by the members of the Board unless a quorum is present. At any meeting where a quorum is present, a vote of the Board members entitled to vote at least a majority of the allocated and outstanding Shares represented at such meeting will be sufficient for Board action. In the event of a tie vote, the Chair shall cast the deciding vote. Written resolutions signed by all members of the Board (with signatures on counterpart copies of the resolution being acceptable for this purpose) will be as valid and effectual as if passed at a meeting of the Board.

4.8 Special meetings of the Board may be held upon written notice of at least seven (7) calendar days of such meetings to all Board members.

4.9 Board members, the Chair and their alternates will not be liable to the CAT or to the Parties for actions taken within the scope of their authority as set forth herein. The Parties will each indemnify their respective representatives and alternates against any action brought by third parties in consequence of the representatives' and alternates' fulfillment of their duties on the Board. Acts of intentional misconduct, acts outside the scope of a representative's authority as a Board member, or willful violations of law and transactions from which the representative or alternate derives an improper personal benefit are excluded from such indemnity.

4.10 General Users and Associate CAT Members.

4.10.1 From time to time during the term of this Agreement, independent investigators unaffiliated with any of the Parties (“General Users”) may receive access to beam time upon the approval of, and subject to the policies instituted by, APS from time to time in its sole discretion.

4.10.2 From time to time during the term of this Agreement, any Party may request that any of its affiliates, or any of its or their respective personnel, investigators, or researchers (each, an “Affiliated Requester”) receive access to beam time by submitting a written request for such

access to the Manager (each, an “Access Notice”) at least thirty (30) days in advance of the date on which such access is requested to commence. Each Access Notice shall describe in reasonable detail the identity of the Affiliated Requester(s) to receive access, the nature of the project to be completed with such access, and the date(s) on which such access would occur; provided, that the date on which such access is requested to commence shall be at least thirty (30) days following the date on which such Access Notice is received by the Manager. The Manager shall submit each Access Notice to the Board for review. If the Board either affirmatively approves the Access Notice, or fails to object to the Access Notice within fourteen (14) days of its submission to the Board, then the Manager shall submit the Access Notice to APS for review and approval, which APS may grant in its sole discretion. Any Affiliated Requester granted access to beam time by APS is referred to in this Agreement as an “Associate CAT Member.”

4.10.3 Any access requested by a Affiliated Requester under this subsection 4.10 shall be subject to review and approval by APS in its sole discretion, and no Affiliated Requester shall be granted access to beam time or Argonne National Laboratory without the prior approval of APS. All Associate CAT Members approved by APS, as well as all work and activities conducted by Associate CAT Members at Argonne National Laboratory, shall comply with the terms of Section 24.0 hereunder, the APS User Policy, the Independent Investigator Policy, the Memorandum of Understanding between the CAT and the APS, and such other policies and procedures as the APS may adopt from time to time.

4.11 Board Observers. From time to time during the term of this Agreement, the Board may, upon majority approval of the Board in accordance with this Section 4, allow certain individuals or entities (including General Users and/or Associate CAT Members) to observe Board meetings (each, a “Board Observer”). Each entity approved as a Board Observer may appoint one (but no more than one) individual to observe Board meetings on behalf of such entity in accordance with the terms of this subsection 4.11. Each Board Observer may participate in discussions and ask questions during each Board meeting, but (a) no Board Observer shall be considered a Board member or a Party to this Agreement, or have any right to vote on any Board action, or exercise any other rights of any Party to this Agreement or any Board member, and (b) any Board Observer’s right to observe a Board meeting or status as a Board Observer may be revoked at any time upon majority approval of the Board in accordance with this Section 4.

5.0 Manager of the LS-CAT

5.1 The Manager of the CAT will be appointed by the Board and will be responsible to the Board for tasks including, but not limited to, those listed in paragraph 5.2. The Manager will be an employee of NU and, as such, eligible for and entitled to all benefits accorded to full-time

employees of NU. The CAT will reimburse NU for the Manager's salary and associated fringe benefits.

5.2 The Manager will be empowered to:

5.2.1 Serve with the Scientific Director as the liaison between the CAT and the APS;

5.2.2 Prepare the Budget for approval by the Board;

5.2.3 Negotiate and enter into contracts on behalf of the CAT for purchase of equipment and supplies and for construction of the instruments for the sector, provided that if any such contract is in excess of an amount specified in the Budget for that contract, the Board must first approve the same.

5.2.4 Recruit, hire and direct requisite staff, who are to likewise be employees of NU;

5.2.5 Manage all design, specification, procurement, fabrication, installation, and commissioning for the beam lines and associated experimental facilities;

5.2.6 Operate and maintain the beam line sector on a day-to-day basis and ensure that performance objectives are met;

5.2.7 Establish beam line safety and quality assurance quality control needs and ensure their implementation with respect to beam line components;

5.2.8 Prepare technical specifications, cost estimates, and schedules for the beam line components and associated experimental facilities;

5.2.9 Adhere to such policies as may be developed by the APS with respect to users, independent investigators, or other matters;

5.2.10 Fulfill any required reporting functions of the CAT;

5.2.11 Assist the Board in maintaining and updating Schedule A hereto in accordance with the terms of this Agreement; and

5.2.12 Perform such other duties as directed by the Board.

5.3 The Manager will not be liable for any actions taken within the scope of the Manager's

official CAT authority and will be indemnified by all Parties equally against the same. Excluded from indemnity are acts involving intentional misconduct, acts outside the scope of the Manager's authority, willful violations of law, and transactions from which the Manager may derive an improper personal benefit.

6.0 Scientific Director of the LS-CAT

6.1 The initial Scientific Director of the CAT will be a scientist of NU who will guide construction during Phase I and acquisition of funding for construction, which is anticipated to last approximately 3 years, and scientific development of subsequent phases. Thereafter, the Scientific Director of the CAT will be appointed by the Board and will be responsible to the Board for tasks including, but not limited to, those listed in paragraph 6.2. The Director shall coordinate all functions with the Board through its Chair.

6.2 The Director will be empowered to:

6.2.1 Serve as the public spokesperson for the CAT;

6.2.2 Serve with the Manager as the liaison between the CAT and the APS;

6.2.3 Coordinate preparation and submission of proposals or contracts with the Board to provide funding for the development and upgrading/maintenance of CAT facilities beyond Phase 1;

6.2.4 Fulfill any required reporting functions of the CAT; and

6.2.5 Perform such other duties as directed by the Board.

6.3 The Director will not be liable for any actions taken within the scope of the Director's official CAT authority and will be indemnified by all Parties equally against the same. Excluded from indemnity are acts involving intentional misconduct, acts outside the scope of the Director's authority, willful violations of law, and transactions from which the Director may derive an improper personal benefit.

7.0 Ownership of Property

7.1 Except as otherwise provided by written agreement of the Parties, all instruments

constructed for the sector and any equipment, supplies, or other property purchased for use by the CAT will be owned by the current Parties equally. In the event any Party exercises the right to terminate this Agreement under paragraphs 12.1 or 12.5 hereof, such Party shall forfeit its share of CAT property ownership, and such property shall thereafter be owned equally by the remaining Parties who shall remain owners of all such instruments, equipment, supplies and property as of the effective date of termination. In the event all Parties terminate this Agreement under paragraphs 12.2, 12.3, 12.4 or 12.6 hereof, all Parties will remain owners of all such instruments, equipment, supplies and property on a basis pro rata to their then-current level of participation or contribution in the CAT, be it financial or otherwise.

7.2 Pursuant to be requirements of Sections 5.2.7 and :5.2.8, any Party may bring to the sector its separately owned equipment for use in conjunction with that Party's research efforts. Each Party will retain ownership of its separately owned equipment at all times.

8.0 Payments for Beam Line Time

8.1 In the event rules or regulations of the Department of Energy or APS stipulate payment for beamline time, because of the nature of the research or disclosure thereof, the Party conducting such research will pay for the applicable beam line time; such payment will not affect other provisions of paragraph 3.1.

9.0 Insurance

9.1 Each Party will be responsible for insuring, as it so chooses any separately owned equipment or other property that it brings to the APS and to which it holds title exclusive of the other Parties. Property in which the Parties share ownership will be insured by NU under its blanket property coverage. NU will name other Parties to this Agreement as additional insureds to reflect their shared ownership in such property.

9.2 The cost of insuring such jointly owned property will be determined annually by NU'S Office of Risk Management. The CAT will receive an invoice for this amount.

9.3 Such property will be insured in an amount commensurate with the value of the property, not to exceed an aggregate replacement amount of all equipment. The aggregate insurance amount may be adjusted at the request of the CAT, subject to NU'S recalculation of the cost of such insurance. In addition, the CAT will make an annual report to NU's Director of Risk Management in such form as the latter may specify indicating the value of such property accumulated at the APS as of the date of the report.

9.4 The Parties' respective risk management and/or insurance offices shall work

together to procure liability and any other insurance coverages appropriate for the types of activities that will be engaged in by the CAT. NU's Office of Risk Management shall take the lead in this effort. Each of the other Parties shall be named as additional insureds under any such coverage. The CAT will pay all costs of procuring this insurance.

10.0 Staff

10.1 The Manager will have authority to hire such staff, or appoint such staff employed by any other Party with the approval of such Party, as may be necessary to carry out the activities of the CAT subject to the approval of the Board. Any CAT staff members hired by NU are to be placed on the payroll of NU and will be eligible for and entitled to all benefits accorded to employees of NU. CAT staff members appointed by NU, but employed by another Party, will remain on the payroll of the Party that employs such CAT staff member, and such CAT staff member only will be eligible for and entitled to the benefits accorded to employees of such Party. For the avoidance of doubt, no such appointed CAT staff member will be considered an employee of NU, nor will such appointed CAT staff member be eligible to receive any salary or benefits from NU. The CAT will, upon the approval of the Board, reduce the applicable Party's Contribution in the applicable Budget year by an amount equal to the total value of the salaries and benefit costs of such staff members.

10.2 The CAT staff hired or appointed by the Manager will be responsible for performing tasks related to the construction, maintenance, and operation of the CAT's sector at the APS. Staff will not be obligated or authorized to participate in research of any Party without a separate written agreement between the Party, NU, and consent of the Board.

10.3 The CAT staff will not be liable for any actions taken within the scope of their official CAT authority and will be indemnified by all Parties equally against the same. Excluded from indemnity are acts involving intentional misconduct, acts outside the scope of their authority, willful violations of law, and transactions from which the CAT staff may derive an improper personal benefit.

11.0 Term

11.1 The term of the Agreement shall commence on March 1, 2002, and end on February 28, 2027, unless earlier terminated pursuant to the terms hereof.

11.2 This term of this Agreement may be extended by written agreement of the Parties.

12.0 Termination

12.1 A Party may terminate its participation in this Agreement and the CAT upon one (1) year's written notice to the other remaining Parties or Party.

12.2 This Agreement will terminate at the end of its initial fifteen (15) year period unless extended pursuant to paragraph 11.2.

12.3 This Agreement may be terminated at any time by mutual written consent of the Parties.

12.4 If any Party is in material breach of the terms of this Agreement, the remaining Parties or Party may elect to consider the Agreement to have been terminated by the breaching Party provided, however, that no such termination will occur unless the breaching Party has been given sixty (60) days written notice of such election and has failed within that time period to cure the material breach. In the event that the breaching Party fails to cure the material breach, such termination will be effective at the end of the one-year period commencing 60 days after written notice was provided by the remaining Parties or Party.

12.5 This Agreement will terminate in the event the Parties are irrevocably deprived of use of the sector for reasons beyond their control including without limitation, a final decision by the APS to discontinue allocation of the sector to the CAT or destruction or shutdown of the APS facility. In the event of such termination of this Agreement, the Parties will wind up the Affairs of the CAT in an equitable manner based on the respective consideration provided and benefits received by each Party during the term of this Agreement.

12.6 In the event of termination by one or more of the Parties pursuant to paragraphs 12.1 or 12.4 the Party or Parties terminating the Agreement will not be entitled to recover any funds already invested in, contributed toward, or intended for the CAT. Termination by reason of a material breach does not relieve the breaching Party of its funding obligations to the CAT for its share of costs through the one year period commencing 60 days after written notice has been provided by one or more non-breaching Party in accordance with paragraph 12.4. The breaching Party will, in addition, pay all reasonable costs and expenses, including attorneys' fees, which the non-breaching Parties or Party may incur in recovering funds owed. Further, in following the effective date of the termination of a Party’s participation in this Agreement and

the CAT pursuant to Section 12.1 or Section 12.4, (a) such Party shall no longer be considered a Party under this Agreement, and, subject to the terms of this Section 12.6, shall no longer have any of the rights or obligations of a Party hereunder, (b) this Agreement, and the rights and obligations of the remaining Parties hereto, will continue in full force and effect thereafter, and, (c) without limiting the generality of the foregoing, any amendment, renewal or extension of this Agreement duly executed in writing by such remaining Parties shall be effective and valid notwithstanding the absence of the terminated Party as a signatory to any such amendment, renewal or extension.

13.0 Force Majeure

13.1 No Party will be responsible for any failure to perform due to unforeseen circumstances or to causes beyond the Party's reasonable control, including but not limited to acts of God, war, riot, embargoes, acts of civil or military authorities, fire, floods, accidents, strikes, shortages of transportation, facilities, fuel, energy, labor or materials, or changes in applicable laws or regulations affecting this Agreement.

14.0 Transfer of Interest

14.1 Subject to the terms of this Section 14.0, any Party may transfer its Shares and interest herein or otherwise assign its rights with notice to and prior written consent from the other Parties hereto. In the event of a transfer or assignment of a Party's Shares and interest in accordance with this Section 14.0, (a) the terms of this Agreement will be incorporated into the agreement between the transferor/assignor and the transferee/assignee as if the transferee/assignee were an original Party to this Agreement, (b) the transferee / assignee shall deliver to the Board an executed copy of the Joinder Agreement, and (c) Schedule A hereto will be amended to reflect (i) the addition of the transferee / assignee as a Party to this Agreement and the Shares to be allocated to such transferee / assignee, and (ii) the removal of the transferor / assignor as a Party to this Agreement. Preference shall be given to entities located in Michigan or companies considered to be based in Michigan.

15.0 Required Written Notice

15.1 Any written notices required under the terms of this Agreement shall be deemed to have been given or made when delivered personally or placed, properly addressed and postage prepaid, in the mail or communicated by telefax or similar electronic means to the representatives of the Parties listed for such Parties on Schedule A attached hereto.

15.2 From time to time during the term of this Agreement, any Party may change its notice information for purposes of subsection 15.1 by providing written notice thereof to each other Party hereto. Upon receipt of such notice, Schedule A shall be deemed to be amended to reflect such notice information included in such notice delivered by such Party.

16.0 Severability

16.1 If any court of competent jurisdiction determines that a provision of this Agreement is unenforceable as contrary to any law, the remaining provisions will remain in full force and effect as if said provision was not part of this Agreement.

17.0 Failure to Enforce Not Deemed a Waiver

17.1 The failure by a Party to enforce any right, power, or remedy available under this Agreement will not be deemed a waiver of such right, power, or remedy.

18.0 Confidentiality

18.1 During the course of this Agreement, each Party may disclose valuable information to another Party. Such information is "Confidential Information to the Party to whom the information is disclosed if it is presented in writing by the disclosing Party and identified in writing as confidential, or if it is disclosed orally or demonstrated by the disclosing Party to the other Party or Parties and outlined and identified as confidential in writing to the receiving Party or Parties within (30) days of this disclosure.

18.2 Confidential Information may only be disclosed to another Party pursuant to the terms of a separate agreement negotiated and signed by the disclosing and receiving Parties prior to the disclosure of the Confidential Information by the disclosing Party. Confidential Information may not be disclosed to or received by the CAT staff.

18.3 A Party receiving Confidential Information will not use it for any purpose other than the research and evaluation contemplated by this Agreement, or disclose confidential Information to any third Party for a period of five (5) years from the date of receipt of the Confidential Information; provided, however, this obligation shall not apply to any information that:

18.4.1 is or becomes known to the public through no fault of the receiving Party;

18.4.2 is already known to the receiving Party prior to its receipt as shown by the prior written records of the receiving Party;

18.4.3 becomes known to the receiving Party by disclosure from a third party who has a

lawful right to disclose the information;

18.4.4 is subsequently developed by the receiving Party independently of the information received from the disclosing Party; or

18.4.5 is required to be disclosed by operation of law or court order.

18.5 Nothing in this section shall be construed to grant a Party any right or license under any patent of another Party.

18.6 The obligations of this Section 18.0 shall be deemed to survive any early termination of this Agreement.

19.0 Intellectual Property

19.1 Inventions conceived or reduced to practice during the course of performing research contemplated by this Agreement solely by the employees of one Party ("inventing Party") and any patent applications or patents thereon will be assigned to the Inventing Party. Decisions on when, where and whether to file patent applications, and responsibility for the preparation and prosecution of any such applications, shall reside with the Inventing Party. The expenses in connection with filing, prosecution, and maintenance of any such applications, U.S. and/or foreign, and the maintenance of issued patents will become by the Inventing Party.

19.2 Inventions conceived or reduced to practice during the course of performing research contemplated by this Agreement by employees of two or more Parties ("Inventing Parties") and any patent applications or patents thereon will be equally owned by said Inventing Parties. Decisions on when, where and whether to file patent applications, will be made on a case-by-case basis by the Inventing Parties. If the Inventing Parties decide that patent protection should be pursued, the responsibility for the preparation and prosecution of any such applications will be determined by mutual agreement between the Inventing Parties. The expenses in connection with the filing, prosecution, and maintenance of any such applications, U.S. and/or foreign, and the maintenance of issued patents will become equally by the inventing Parties.

If less than all inventing Parties are interested in pursuing patent protection for inventions of this paragraph, responsibility for the preparation and prosecution of any such applications in the names of the Inventing Parties, including the scope and content thereof, shall reside with the interested Party or Parties after consultation with the disinterested Parties or Party. The expenses in connection with the filing, prosecution, and maintenance of any such applications,

U.S. and/or foreign, and the maintenance of issued patents will be borne by the interested Party or Parties. The interested Party or Parties shall not abandon such applications or discontinue maintenance of patents hereunder without first giving the other Party or Parties an opportunity to assume expenses thereof.

19.3 With respect to inventions under paragraph 19.2, the Inventing Parties will mutually agree to a licensing program.

20.0 Publication

20.1 Each Party has the right to publish or similarly publicly disclose information arising out of research conducted solely by its employees, subject to the confidentiality obligations in Section 18.0.

20.2 Each Party agrees not to unilaterally publish or similarly publicly disclose information out of research conducted a) jointly by employees of multiple Parties, b) by CAT staff, or c) jointly by CAT staff and employees of a Party or Parties, without adhering to the requirements of this provision. Publications resulting from joint research shall be joint or sole publications, as determined by the Parties conducting such research jointly.

20.3 Prior to submission for publication or public presentation of a manuscript or abstract describing the results of research conducted jointly, the publishing Party will send a copy of the proposed manuscript or abstract to the non-publishing Party(s). Within twenty (20) days of the other Party's receipt of the manuscript, the non-publishing Party(s) shall identify, in writing, for the publishing Party specific information in the manuscript that is either potentially patentable or constitutes Confidential Information. Such delay shall not, however, be imposed on the filing of any student thesis or dissertation.

20.4 Upon receipt of a non-publishing Party's written notice, and within the 20-day review period, the publishing Party will redact any identified Confidential Information from the manuscript to be submitted or published. If a non-publishing Party has identified potentially patentable information, the publishing Party will delay submission or publication for a maximum of an additional sixty (60) days in order to protect the potential patentability of any invention described therein. If a non-publishing Party has not identified any potentially patentable information, the publishing Party may submit or publish the redacted manuscript without further delay.

20.5 If the 20-day review period expires without written notice from a non-publishing Party to the publishing Party, the publishing Party shall be free to submit such manuscript for publication and to publish the disclosed research results in any manner consistent with professional standards.

21.0 Indemnification

21.1 Mutual Indemnification. The Parties mutually agree to indemnify each other and hold each other harmless against any cause, claim, action, or lawsuit (a) for injuries to or the death of any person or damage to or loss of property, or the loss of the use thereof caused or claimed to have been caused or to have arisen out of or in connection with or incidental to any work of, act or omission, negligence or willful misconduct of an employee or employees of the indemnifying Party, or (b) arising solely as a result of acts of intentional misconduct or willful violations of law by one or more of an indemnifying Party's representatives or alternates on the Board of the CAT (if any).

21.2 NU Indemnification. NU further agrees to indemnify the other Parties and hold them harmless against any cause, claim, action, or lawsuit arising out of any actions of the Manager or CAT staff when acting as employees of and solely for the benefit of NU, including any research activities. Notwithstanding the foregoing, NU will have no obligation to indemnify the other Parties against acts of the CAT staff, including the Manager, because of their status as employees of NU unless the acts giving rise to the cause, claim, action, or lawsuit were being performed solely for the benefit of NU pursuant to a separate agreement as specified in paragraph 10.2. In the event the acts giving rise to a cause, claim, action or lawsuit were being performed by the CAT staff solely for the benefit of one or more of the other Parties (other than NU) pursuant to a separate agreement as specified in paragraph 10.2 (each, a "Responsible Party"), each Responsible Party will individually indemnify each other Party and hold it harmless against that cause, claim, action, or lawsuit.

21.3 Defense of Claims Against CAT. In the event of liability asserted against the CAT, the general counsels of the other Parties will select by mutual agreement one or more attorneys to coordinate the CAT'S legal defense. Each Party will share pro rata to their level of participation in the CAT in the costs of the defense, subject to paragraphs 21.3 through 21.7.

21.4 Change of Law. Each Party shall notify the other Parties of any future legislation which materially impairs its ability to meet its indemnification obligations under this Agreement. In the event of such a development, the Parties agree to work in good faith to amend this Agreement (if possible) in a manner that is equitable to all Parties.

22.0 Agency

22.1 Nothing in this Agreement will constitute a partnership for any purpose except as may be specified herein. No Party has authority to act as agent or representative of another Party and has no authority to bind another party or to incur any liability on behalf of another Party. No Party may use the name of another Party, without prior written approval, in any document of publication that is not in furtherance of the operation of the CAT. No Party has authority to direct the employees of the others except that each Party may direct the CAT staff who are employees of NU pursuant to a written agreement as specified in paragraph 10.2.

23.0 Titles

23.1 The titles and headings of each section of this Agreement are intended for convenience only and will not be used in construing or interpreting the meaning of any particular paragraph or provision.

24.0 Participants Other Than the Parties

24.1 The Parties may allocate a portion of their allotted time on the APS beam line to outside parties at the discretion of the allocating Party, subject to the terms of subsection 4.10 and certain other terms of this Agreement as defined below.

24.2 An outside party may only conduct research consistent with the purposes of the CAT as appear in Section 2 hereof.

24.3 The Parties remain responsible for the funding obligation of Section 3 hereof. However, Parties allocating time to an outside party may enter into financial arrangements with that party independently of these funding obligations as described in subsection 3.8.

24.4 An outside party is not entitled to representation on the Board but may receive rights as a Board Observer subject to the terms of subsection 4.11, and is subject to the powers and duties of the Board and of the Manager of the CAT, in each case, as set forth in this Agreement.

24.5 An outside party cannot acquire an ownership interest in property owned by a Party pursuant to paragraph 7.1. However, that party may bring its separately owned equipment to the sector and retain ownership thereof pursuant to paragraph 7.2. An outside party will be responsible for insuring its separately owned equipment as it so chooses.

24.6 An outside party must pay for beam line time assessments in accordance with Section 8.0 if payments are required by the Department of Energy or APS.

24.7 The term of participation by an outside party cannot exceed the term of this Agreement

24.8 If the Party allocating beam line time to an outside party terminates this Agreement, that Party is also deemed to have terminated the access rights of the outside party. Further, if this Agreement is terminated for any other reason, the access rights of any outside party allocated beam time hereunder is also terminated.

24.9 An outside party receiving an allocation of time under Section 24.1 may not transfer said allocation in whole or in part. At the expiration of the agreement between the allocating Party and the outside party, the interest of the outside party reverts to the allocating Party.

24.10 Any agreement with an outside Party will be subject to the terms of this Agreement, and specifically Sections 4.10, 13.0, 16.0 - 20.0 and 22.0.

24.11 The allocating Party will indemnify and hold the other Parties to this Agreement harmless against any cause, claim, action or lawsuit for injuries to or death of any person or damage to or loss of property or the loss of the use thereof caused by the outside party to whom beam time has been allocated pursuant to this section.

25.0 Entire Agreement

25.1 This Agreement, together with all attachments and schedules hereto, contains all the terms and conditions agreed to by the Parties hereto with respect to the subject matter hereof, and supersedes any and all prior or contemporaneous agreements, representations and understandings of the Parties with respect to the subject matter hereof, including, without limitation, the Original CAT Agreement. As of the Effective Date, this Agreement shall replace and supersede the Original CAT Agreement in its entirety, and the rights, liabilities and obligations of the Parties previously governed by the Original CAT Agreement shall continue in full force and effect, but shall now be governed by the terms and conditions set forth in this Agreement. Any alteration, variation, modification or waiver of a term or condition of this Agreement shall be valid only when reduced to writing, duly signed by the Parties, and attached hereto.

26.0 Counterparts

This Agreement may be executed the Parties in counterparts, all of which taken together shall constitute one and the same instrument, and delivery of an executed counterpart by facsimile or electronic mail shall be effective as delivery of a manually executed counterpart hereof.

[Remainder of Page Intentionally Left Blank; Signature Page Follows]

IN WITNESS WHEREOF, the Parties have caused this Agreement to be executed by their respective duly authorized representatives effective as of the Effective Date.

NORTHWESTERN UNIVERSITY

By: _____

Name: _____

Its: _____

Date: _____

THE UNIVERSITY OF MICHIGAN

By: _____

Name: _____

Its: _____

Date: _____

THE BOARD OF TRUSTEES OF THE UNIVERSITY OF ILLINOIS

By: _____

Name: _____

Its: _____

Date: _____

VANDERBILT UNIVERSITY

By: _____

Name: _____

Its: _____

Date: _____

THE UNIVERSITY OF WISCONSIN

By: _____

Name: _____

Its: _____

Date: _____

WAYNE STATE UNIVERSITY

By: _____

Name: _____

Its: _____

Date: _____

MICHIGAN STATE UNIVERSITY

By: _____

Name: _____

Its: _____

Date: _____

Attachment A

Memorandum of Understanding

(See attached.)

Attachment B

Form of Joinder Agreement

(See attached.)

Schedule A

Parties; Shares; Notice Information

Name and Notice Address	Number of Shares Allocated to Party
Northwestern University [ADDRESS AND CONTACT INFO FOR NOTICE PURPOSES UNDER THE AGREEMENT]	[__] Shares
University of Michigan [ADDRESS AND CONTACT INFO FOR NOTICE PURPOSES UNDER THE AGREEMENT]	[__] Shares
Michigan State University [ADDRESS AND CONTACT INFO FOR NOTICE PURPOSES UNDER THE AGREEMENT]	[__] Shares
Wayne State University [ADDRESS AND CONTACT INFO FOR NOTICE PURPOSES UNDER THE AGREEMENT]	[__] Shares
University of Wisconsin [ADDRESS AND CONTACT INFO FOR NOTICE PURPOSES UNDER THE AGREEMENT]	[__] Shares
Vanderbilt University [ADDRESS AND CONTACT INFO FOR NOTICE PURPOSES UNDER THE AGREEMENT]	[__] Shares
University of Illinois at Urbana-Champaign [ADDRESS AND CONTACT INFO FOR NOTICE PURPOSES UNDER THE AGREEMENT]	[__] Shares